

Court No. - 34

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4940 of 2011

Petitioner :- Sri Ram Singh

Respondent :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Petitioner Counsel :- Sudhakar Pandey

Hon'ble Sanjay Misra,J.

According to Sri Sudhakar Pandey learned counsel for the applicant the applicant had filed writ petition no. 64253 of 2010 (Shri Ram Singh Vs State of U.P. and others) wherein by order dated 27.10.2010 a Division Bench of this court gave liberty to the petitioner to approach the competent authority under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in case such application is made the competent authority was required to proceed in accordance with law.

Learned counsel states that certified copy of the order along with the application under Clause 6.5 of the Code was filed by the petitioner on 30.10.2010 before the Executive Engineer, Electricity Distribution, Ballia however although nearly eleven months have passed no decision has been taken by the opposite party nor communicated to the petitioner till date which is disobedience of the directions issued by the writ court.

Primafacie it appears that the opposite party has disobeyed the order issued by the writ court.

In view of the aforesaid circumstances issue notice to the opposite party Mr. Gangadhar, Executive Engineer (Vidyut Vitaran Khand I), Ballia fixing an early date. The opposite party is required to file reply to the contempt petition.

List on the date so fixed.

Order Date :- 18.10.2011

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Court No. - 34

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Respondent :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Petitioner Counsel :- Sudhakar Pandey

Respondent Counsel :- Sc

Hon'ble Vikram Nath,J.

Sri H.P. Dubey, learned counsel for the opposite party has filed an affidavit of compliance. The same is taken on record.

Learned counsel for the applicant prays for and is allowed a week's time to obtain instructions.

List in the next cause list showing the name of Sri H.P. Dubey, Advocate from he side of th opposite party.

Order Date :- 30.11.2011

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Court No. - 40

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4940 of 2011

Petitioner :- Sri Ram Singh

Respondent :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Petitioner Counsel :- Sudhakar Pandey

Respondent Counsel :- H.P.Dubey,Sc

Hon'ble Vikram Nath,J.

Learned counsel for the applicant states that the officers of Power Corporation are now represented by Sri Mahboob Ahmad, Advocate. Accordingly this contempt application be listed in the next cause list showing the name of Sri Mahboob Ahmad, Advocate from the side of the opposite party in place of Sri H.P. Dube, Advocate. The name of Sri H.P. Dube, Advocate be no longer printed from the side of the opposite party.

Order Date :- 26.7.2012

RPS

Court No. - 40

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4940 of 2011

Applicant :- Sri Ram Singh

Opposite Party :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Counsel for Applicant :- Sudhakar Pandey

Counsel for Opposite Party :- H.P.Dubey, Mahboob Ahmad, Sc

Hon'ble Ran Vijai Singh, J.

Passed over on the illness slip of learned counsel for the opposite party.

Order Date :- 25.4.2014

Amit Mishra

Court No. - 40

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4940 of 2011

Applicant :- Sri Ram Singh

Opposite Party :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Counsel for Applicant :- Sudhakar Pandey

Counsel for Opposite Party :- H.P.Dubey, Mahboob Ahmad, Sc

Hon'ble Pankaj Naqvi, J.

Civil Misc. Impleadment Application No. 304554 of 2014

Application is allowed.

Let necessary incorporation be carried out. Notice be issued to newly impleaded opposite party, who may, if he so desire, file counter affidavit.

List in the week commencing **17.11.2014**.

Order Date :- 18.9.2014

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Court No. - 30

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4940 of 2011

Applicant :- Sri Ram Singh

Opposite Party :- Gangadhar, Exicutive Engineer (Vidyut Vitaran Khand-I)

Counsel for Applicant :- Sudhakar Pandey, Sudhakar Pandey

Counsel for Opposite Party :- H.P.Dubey, Mahboob Ahmad, SC

Hon'ble Pankaj Naqvi, J.

Case called out. No one is present.

There is already a notice published in the cause list that the case shall be taken up irrespective of the fact whether learned counsels are present or not.

The matter is of the year 2011 and since then considerable period has elapsed. In all probability, the order must have been complied with, rendering this contempt as infructuous.

The contempt is **dismissed** as infructuous. Notice discharged.

Order Date :- 2.12.2016

N.S.Rathour